SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 12
Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 05/22/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 9	25CV470062	Meral Shirazipour V Volkswagen Group of America et al.	MOTION TO COMPEL Please control click or scroll down to Line 9
LINE 10	25CV473851	Kian Nakano Amini v. Kayvan Nakano Amini	MOTION FOR DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION Parties filed Joint Stipulation to Sell Real Property. Motion for Default Interlocutory Judgment of Partition and Appointment of Referee vacated.
LINE 11	25CV478493	Daniel Diaz v. American Honda Motor Co. Inc.	MOTION TO COMPEL FURTHER RESPONSES People's Motion to Compel. Defendant contends the motion is moot. Plaintiff contends the responses were late and/or deficient. The Court notes a similarly filed motion to compel by Defendant against Plaintiff scheduled for 12/11/2026. Counsel are ordered to meet and confer regarding what matters remain in dispute. Counsel are ordered to appear at the hearing for further scheduling.
LINE 12			

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Calendar Line 1

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Calendar Line 2

Case Name: *Archon Design Solutions, Inc. v. Global Semiconductor Alliance, et al.*
Case No.: 23-CV-423808

Factual and Procedural Background

Plaintiff Archon Design Solutions, Inc. ("Plaintiff") is in the business of intellectual property and consulting services on strategy and marketing for the semiconductor, electronics, and software industries. Athanassios Katsioulas ("Katsioulas") is Plaintiff's president and chief executive officer ("CEO"). Defendant Global Semiconductor Alliance ("GSA") is Plaintiff's business associate and conducts public events. Jodi Shelton ("Shelton") founded defendant J. Shelton Associates, Inc. ("Shelton Group") and is the CEO for both entities. Shelton Group is a corporate communication agency and provides trade association management services to GSA. (Second Amended Complaint ["SAC"] at ¶¶ 1-4, 9.) For years, Shelton utilized the Shelton Group to provide services for GSA members. Plaintiff alleges Shelton was motivated by personal gain and the desire to advance her own wealth and status and to create legacy in the semiconductor industry. (Id. at ¶ 6.)

Katsioulas had been involved with GSA since 2019. Katsioulas was initially a board member and chair of the GSA-sponsored Internet of Things ("IoT") Security Working Group, which was relaunched as the Trusted IoT Ecosystem Security ("TIES"). Katsioulas later became an independent consultant to GSA and remained the Chair of the TIES group. As a member and consultant to GSA, Katsioulas developed a platform structure for orchestrated multi-stakeholder collaboration ("TIES IP"). Plaintiff planned to pursue business with GSA and prospective partners outside GSA, using its developed TIES IP. (SAC at ¶ 6.)

Scott Strittmatter ("Strittmatter") was employed by Shelton Group as its chief financial officer ("CFO") and for 23 years was GSA's CFO. In 2020, TIES was announced with Katsioulas as the chair, and Katsioulas came to an agreement with Strittmatter that he would continue to chair TIES as an independent consultant to GSA through Plaintiff. By 2021, Katsioulas had grown TIES to 26 members and over 40 contributors, but he could not support leading and administering TIES without resources and investment. (SAC at ¶¶ 11-12.)

In May 2021, Strittmatter agreed to pay Plaintiff a stipend of $200/hour for up to 40 hours per month and asked Katsioulas to supply monthly logs for the time he spent on TIES. Katsioulas and Strittmatter agreed that any excess hours in excess of 40 hours per month would be rolled forward and any accumulated payments to Plaintiff would be deferred provided that Katsioulas continued to lead the group and did not voluntarily leave. (SAC at ¶ 12.)

In October 2022, GSA lauded Katsioulas' performance for TIES accomplishments and confirmed that its 2023 budget included Plaintiff's monthly stipend and that Plaintiff would receive payment for the excess hours worked. (SAC at ¶ 17.) In November 2022, Strittmatter resigned from Shelton Group and GSA. (Id. at ¶ 18.) On December 27, 2022, Katsioulas had a conference with Shelton and the GSA service staff, in which they informed him that GSA did not have the budget for his agreed stipend and could not afford an external consultant for TIES even though services had already been provided at that time and were unpaid. (Id. at ¶ 21.) In January 2023, Shelton avoided Katsioulas' several attempts to discuss the issues with her, and she refused to promote TIES to the GSA board or to review its progress. (Id. at ¶ 23.) Shelton subsequently took actions that were contrary to GSA's interest. (Id. at ¶ 24.)

On October 25, 2024, Plaintiff filed the operative SAC against defendants GSA, Shelton Group, and Shelton alleging causes of action for: (1) Breach of Express Oral Contract; (2) Breach of Implied Contract to Pay Consultancy Fees; (3) Promissory Estoppel; (4) Quantum Meruit; (5) Tortious Interference with Contract; and (6) Intentional Interference with Prospective Economic Relations.

On April 16, 2026, defendant GSA filed the motion presently before the court, a motion for summary judgment, or in the alternative, summary adjudication. (Code Civ. Proc., § 437c.) Plaintiff filed written opposition. GSA filed reply papers and evidentiary objections.

Trial is scheduled for June 8, 2026.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

The first, second, third, and fourth causes of action in the SAC are alleged against defendant GSA. GSA moves for an order of summary judgment on the ground that Plaintiff cannot raise any triable issue of material fact as to these claims and thus judgment should be entered as a matter of law. In the alternative, GSA moves for summary adjudication of the first, second, third, and fourth causes of action.

Defective Separate Statement

As a preliminary matter, it appears defendant GSA filed a separate statement in support of the motion that does not comply with the rules of court.

The separate statement in support of the motion must separately identify each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and state in numerical sequence the undisputed material facts in the first column. (See Cal. Rules of Court, rule 3.1350(d)(1)(A), (B)(3).)

"If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty **must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts**." (Cal. Rules of Court, rule 3.1350(b), emphasis in bold added.)
"The requirement of a separate statement from the moving party and a responding statement from the party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed." (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210.) As one court explained:

> "Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for SAI and summary judgment to determine

> quickly and efficiently whether material facts are disputed." (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335.)

A failure to comply with the separate statement requirement may, in the court's discretion, constitute a sufficient ground for denying the motion. (See Code Civ. Proc., § 437c, subd. (b)(1).)

Here, the separate statement submitted by defendant GSA is divided into sections under various factual headings. The statement however does not separately identify each cause of action that is the subject of the motion and thus violates the rules of court. But, GSA's memorandum of points and authorities appears to cite material facts in support of its arguments on summary judgment and summary adjudication. Therefore, the court will overlook this procedural violation and consider the merits of the motion. The court urges defense counsel to follow court rules and procedures with respect to future filings, especially when submitting dispositive motions for summary judgment and summary adjudication.

Evidentiary Objections

"In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court…" (Code Civ. Proc., § 437c, subd. (c).)

"In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review." (Code Civ. Proc., § 437c, subd. (q).)

Written evidentiary objections must be made in a separate document and must not be re-stated or re-argued in the separate statement. (Cal. Rules of Court, rule 3.1354(b).) Objections must identify the specific item of evidence that is objectionable. (Ibid.)

In addition, evidentiary objections must be accompanied by a proposed order that complies with the requirements set forth in California Rules of Court, rule 3.1354(c). The rule requires an objecting party to file two separate documents, objections and a separate proposed order, both in one of the approved formats set forth in the rule. (See Cal. Rules of Court, rule 3.1354(b) and (c).)

In reply, defendant GSA submits objections to evidence incorporated with Plaintiff's opposition. The court OVERRULES Objection Nos. 12-13, and 22 in their entirety. The court declines to rule on the remaining objections as they are not material to the outcome of the motion for reasons explained below.

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) "The object of the summary judgment procedure is 'to cut through the parties' pleadings' to determine whether trial is necessary to resolve their dispute. [Citation.]" (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020.)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact…" (*Aguilar, supra,* 25 Cal.4th at p. 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra,* 25 Cal.4th at p. 850.)

A triable issue of material fact exists "if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar, supra,* 25 Cal.4th at p. 850, fn. omitted.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* at p. 856.)

Throughout the process, the trial court "must consider all of the evidence and all of the inferences drawn therefrom." (*Aguilar, supra,* 25 Cal.4th at p. 856.) The moving party's evidence is strictly construed, while the opponent's is liberally construed. (*Id.* at p. 843.)

Similarly, "[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] 'A motion for summary adjudication…shall proceed in all procedural respects as a motion for summary judgment.' [Citation.]" (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.)

"[S]ummary judgment (or summary adjudication) is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]" (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660; see *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 ["The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence."].)

First Cause of Action: Breach of Express Oral Contract

"To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages to the plaintiff." (*Maxwell v. Dolezal* (2014) 231 Cal.App.4th 93, 97-98.) The elements for breach of an oral contract are the same as those for a breach of a written contract. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453.)

On summary judgment, defendant GSA argues the first cause of action fails because: (1) Plaintiff cannot establish the existence of the May 2021 Overtime Agreement; (2) the terms of the Overtime Agreement are vague and unenforceable; and (3) the Overtime Agreement violates the Statute of Frauds.

<u>Existence of Overtime Agreement</u>

"Contract formation requires mutual consent, which cannot exist unless the parties 'agree upon the same thing in the same sense.' [Citations.] 'If there is no evidence establishing a manifestation of assent to the "same thing" by both parties, then there is no mutual consent to contract and no contract formation.' [Citation.] 'Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.' [Citations.]" (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 208 (*Bustamante*).)

"Where the existence of a contract is at issue and the evidence is conflicting or admits of more than one inference, it is for the trier of fact to determine whether the contract actually existed. But if the material facts are certain or undisputed, the existence of a contract is a question for the court to decide. [Citation.]" (*Bustamante, supra,* 141 Cal.App.4th at p. 208.)

On summary judgment, "the pleadings frame the issues to be resolved. '"The purpose of a summary judgment [adjudication] proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute." [Citation.] "The function of the pleadings in a motion for summary judgment [adjudication] is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." [Citations.]' [Citations.]" (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 477 (*Snatchko*).)

The first cause of action is based on an alleged oral contract which provides:

> In May 2021, Strittmatter agreed to pay Plaintiff (or Archon) a stipend of $200 per hour for up to 40 hours per month and asked Katsioulas to supply monthly logs for the time he spent on TIES. Katsioulas and GSA agreed that any hours in excess of 40 hours per month logged in by Katsioulas would be rolled forward and that any accumulated payments to Plaintiff for these "extra hours" would be deferred provided that Katsioulas continued leading the group and did not voluntarily leave. (SAC at ¶ 12.)

In particular, defendant GSA agreed to monthly payments of $200 per hour for up to 40 hours of work per month, plus additional compensation at the same hourly rate for hours worked over 40 hours per month to be deferred pending proof of TIES' value to the GSA pursuant to success metrics to show proof of value mutually agreed by the parties. (SAC at ¶ 39.)

Plaintiff alleges defendant GSA breached its obligation to pay deferred compensation owed to Plaintiff which falls under the Overtime Agreement. (SAC at ¶ 43.)

On summary judgment, defendant GSA submits deposition testimony from Strittmatter denying the existence of any Overtime Agreement between the parties. (See GSA's Separate

Statement of Undisputed Facts ["SSUF"] at No. 14.) Such evidence is sufficient for GSA to meet its initial burden on summary judgment.

As an initial matter, to the extent that Plaintiff relies on the existence of a 2022 amended performance agreement, the court declines to consider such contract as it was not pled in the operative pleading and cannot be raised for the first time through evidence in opposition to a summary judgment motion. (See *Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493 ["The burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability *as alleged in the complaint*; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings."]; *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 182 ["We do not require [defendant] to negate elements of causes of action plaintiffs never pleaded."]; *Snatchko, supra,* 187 Cal.App.4th at p. 477 ["A plaintiff may not avoid summary judgment by producing evidence to support claims outside the issues framed by the pleadings."]; see also *Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 90 ["A plaintiff wishing 'to rely upon unpleaded theories to defeat summary judgment' must move to amend the complaint before the hearing."].)

That said, in opposition, Plaintiff provides a declaration from Katsioulas acknowledging the parties' oral agreement and noting that he kept logs internally tracking certain amounts as deferred compensation. (See Plaintiff's Disputed Fact at No. 14; Katsioulas Decl. at ¶¶ 8-9, Ex. 1.) This minimal evidence is sufficient to establish the existence of an oral agreement between the parties and raise a triable issue of material fact. (See *Gleason v. Klamer* (1980) 103 Cal.App.3d 782 [appellate court reversed trial court's order granting summary judgment because there was a single triable issue of fact].)

<u>Overtime Agreement Terms</u>

" 'Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached.' [Citation.] 'To be enforceable, a promise must be definite enough that a court can determine the scope of the duty [,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages.' [Citations.] 'Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.' [Citations.] 'The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy.' [Citations.] But, '[i]f … a supposed "contract" does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.' [Citation.]" (*Bustamante, supra,* 141 Cal.App.4th at p. 209.)

As stated above, the parties' Overtime Agreement includes additional compensation at the same hourly rate for hours worked over 40 hours per month to be deferred pending proof of TIES' value to the GSA pursuant to success metrics to show proof of value mutually agreed by the parties. (SAC at ¶ 39.) As pled, defendant GSA contends these terms are vague and unenforceable. The court is not persuaded as the relevant inquiry is whether a court can determine the obligations agreed to by the parties and whether those obligations have been breached. (*Bustamante, supra,* 141 Cal.App.4th at p. 209.) Here, the Overtime Agreement is sufficiently definite as it provides an hourly rate of $200 for hours worked over 40 hours per month which are deferred pending proof of TIES' value to GSA which, according to the allegations, can be separately determined. This contention therefore does not weigh in favor of summary judgment or summary adjudication.

Statute of Frauds

"[T]he statute of frauds requires certain documents to be evidenced by a writing subscribed by the party. If not evidenced by such a writing, a contract subject to the statute of frauds is invalid. (Civ. Code, § 1624.)

Under California's statute of frauds, when a contract is not to be performed within one year it 'or some note or memorandum thereof, must be in writing and subscribed by the party to be charged or by the party's agent. (Civ. Code, § 1624, subd. (a).) "The writing need not contain all of the contract's terms; it is sufficient 'if it identifies the subject of the parties' agreement, shows that they made a contract, and states the essential contract terms with reasonable certainty.' [Citation.] The purpose of this requirement is ' "to require reliable evidence of the existence and terms of the contract and to prevent enforcement through fraud or perjury of contracts never in fact made." ' [Citations.]" (*Harshad & Nasir Corp. v. Global Sign Systems, Inc.* (2017) 14 Cal.App.5th 523, 537.)

As a preliminary matter, defendant GSA does not direct the court to any material facts in the separate statement to support the statute of frauds defense. Also, the statute of frauds applies only where the oral contract *cannot* be performed within one year. (See *Connelly v. Venus Foods, Inc.* (1959) 174 Cal.App.2d 582, 586 [it is well settled that oral contracts invalidated by the statute of frauds because not to be performed within a year include those only which cannot be performed within that period].) That is not the case here as the terms set forth in the alleged oral contract could be performed in one year.

Therefore, the motion for summary judgment is DENIED. The motion for summary adjudication to the first cause of action is DENIED.

Second Cause of Action: Breach of Implied Contract to Pay Consultancy Fees

"A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct." (*Yari v. Producers Guild of America, Inc.* (2008) 161 Cal.App.4th 172, 182.)

Here, the breach of implied contract claim relies on the same oral contract alleged in the first cause of action. In fact, the second cause of action alleges the same oral contract seeking the same damages for breach by defendant GSA. (See SAC at ¶¶ 45, 49-50.) And, as articulated above, Plaintiff's first cause of action remains viable and will be addressed by the trier of fact at trial. For that reason, the second cause of action is redundant and therefore properly disposed by way of this motion.

Accordingly, the motion for summary adjudication to the second cause of action is GRANTED.

Third Cause of Action: Promissory Estoppel

" 'Promissory estoppel is "a doctrine which employs equitable principles to satisfy the requirement that consideration must be given in exchange for the promise sought to be enforced." [Citation.]' [Citation.] Because promissory estoppel is an equitable doctrine to allow enforcement of a promise that would otherwise be unenforceable, courts are given wide discretion in its application. [Citations.]" (*US Ecology, Inc. v. State of California* (2005) 129 Cal.App.4th 887, 901-902.)

The elements of a promissory estoppel claim are: (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) the reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance. (*Jones v. Wachovia Bank* (2014) 230 Cal.App.4th 935, 945.)

" '[A] promise is an indispensable element of the doctrine of promissory estoppel. The cases are uniform in holding that this doctrine cannot be invoked and must be held inapplicable in the absence of a showing that a promise had been made upon which the complaining party relied to his prejudice … .' [Citation.] The promise must, in addition, be 'clear and unambiguous in its terms.' [Citation.] 'Estoppel cannot be established from … preliminary discussions and negotiations.' [Citation.]" (*Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1044.)

Defendant GSA argues there is no clear and unambiguous promise for payment of deferred overtime compensation to support promissory estoppel. (See GSA's SSUF at Nos. 14, 30, 31.) But, as explained above, the court already determined that triable issues of fact exist regarding the formation of an oral contract and thus a clear and unambiguous promise for payment of deferred overtime compensation by GSA remains to establish promissory estoppel.

Consequently, the motion for summary adjudication to the third cause of action is DENIED.

Fourth Cause of Action: Quantum Meruit

" 'Quantum meruit refers to the well-established principle that "the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered." [Citation.] To recover in quantum meruit, a party need not prove the existence of a contract [citations], but it must show the circumstances were such that "the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made" [citations].' [Citation.] The requisite elements of quantum meruit are (1) the plaintiff acted pursuant to 'an explicit or implicit request for the services' by the defendant, and (2) the services conferred a benefit on the defendant. [Citation.]" (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 180.)

The fourth cause of action is pled as an alternative to the first and second causes of action. As the first cause of action remains viable, so too is the fourth cause of action for quantum meruit.

Therefore, the motion for summary adjudication to the fourth cause of action is DENIED.

Disposition

The motion for summary judgment to the SAC is DENIED.

The motion for summary adjudication to the first, third, and fourth causes of action is DENIED.

The motion for summary adjudication to the second cause of action is GRANTED.

The court will prepare the order.

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Calendar Line 3

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Calendar line 4
24CV443623
Riley's Remodeling & Design
v.
Joseph and Geriann Shaw

Defendant's motion to disqualify Last, Faoro & Whitehorn as attorneys of record.

A motion to disqualify counsel implicates competing interests, including a party's right to chosen counsel, the attorney's interest in representing a client, and the need to maintain ethical standards and public trust in the integrity of the judicial process. (See People ex rel. Dept. of Corporations v. SpeeDee Oil Change Systems, Inc..)

California law recognizes that duties of confidentiality may arise from preliminary consultations with prospective clients even where no formal attorney-client relationship is ultimately formed. (Id.; see also Rule 1.18 of the California Rules of Professional Conduct.) However, disqualification is not automatic merely because a consultation occurred. The court must determine whether the prior consultation and the present representation are substantially related such that confidential information material to the current matter would normally have been imparted to the attorney. (See Flatt v. Superior Court.)

Where a substantial relationship is established, courts may apply a conclusive presumption that confidential information was transmitted. However, the presumption does not arise solely from the existence of a preliminary consultation. Rather, the moving party must first demonstrate a relationship and factual circumstances sufficient to support application of the substantial relationship test.

Here, Defendant presents evidence that Defendant consulted with Attorney Faoro regarding issues generally involving contractor payment disputes and lien rights arising from the same underlying dispute at issue in this litigation. Defendant further argues that the consultation itself is sufficient to invoke the substantial relationship test and resulting presumption that confidential information was disclosed.

The Court is not persuaded on the present record.

The evidence submitted reflects that the consultation was preliminary and limited in nature. The evidence further reflects that Defendant did not retain Attorney Dennis L. Faoro or the firm, did not identify the opposing parties, and did not discuss specific litigation strategy, factual admissions, settlement positions, or other confidential information material to the present action. While Defendant correctly notes that a court need not inquire into the actual content of privileged communications once the substantial relationship test applies, the threshold question remains whether the nature of the consultation was such that confidential information material to the present matter would ordinarily have been disclosed.

On the facts presented, Defendant has not met that burden.

The Court acknowledges that the consultation involved the same general contractor dispute and related lien-right issues now before the Court. However, generalized discussions concerning legal rights or broad categories of disputes, without disclosure of material confidential information or facts demonstrating a substantive professional relationship, are insufficient to warrant the drastic remedy of disqualification.

The Court therefore finds Defendant has not established a prior relationship giving rise to the conclusive presumption that Attorney Faoro or the firm of Last, Faoro & Whitehorn received confidential information material to the present litigation.

Accordingly, the motion is DENIED.

Plaintiff to prepare the final order accompanied by Form EFS-020 within 7 days of the hearing.

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Calendar Line 5
Case Name: *Jin Yin v. Hiu Yip et al*
Case No.: 24CV445907

Special Motion to Strike by Defendant Xiaoxiao Liu

Factual and Procedural Background

On November 10, 2025, plaintiffs Jin Yin ("Yin") and YJBM Beauty LLC ("YJBM"; collectively "Plaintiffs") filed the verified Second Amended Complaint ("SAC") against defendant Xiaoxiao Liu ("Defendant") alleging the following causes of action: (1) intentional misrepresentation; (2) concealment; (3) intentional interference of contractual relationship; (4) violation of California Franchise Investment Law ("CFIL"); and (5) violation of California Unfair Competition Law ("UCL").

According to the SAC, Defendant, acting as counsel, assisted in defrauding Plaintiffs by preparing and presenting the "Trademark and Know-How License Agreement" (the "Licensing Agreement"), which disguised a franchise relationship as a trademark license. (SAC, ¶¶ 5, 13, 19.) Defendant drafted the Licensing Agreement as an attempt to bypass the requirements under Federal Trade Commission ("FTC") franchise rules and CFIL. (*Id.* at ¶ 19.) Plaintiffs encountered issues after purchasing the franchise, prompting them to retain counsel with franchise law expertise, upon which Plaintiffs discovered Defendant violated CFIL. (*Id.* at ¶ 21.)

On November 17, 2025, Defendant filed the present special motion to strike the SAC, or in the alternative, the first through fifth causes of action alleged therein. Plaintiffs timely filed a written opposition, and Defendant timely filed a written reply.

Special Motion to Strike

Defendant's special motion to strike is brought on the grounds that the pleading or claims arise from protected activity and Plaintiffs cannot demonstrate a probability of success on the merits.

Legal Standard

Code of Civil Procedure section 425.16, subdivision (b)(1) provides:

> A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.

This special motion to strike is commonly referred to as an "anti-SLAPP" motion.

Courts evaluate anti-SLAPP motions using a two-step analysis. (*Country Side Villas Homeowners Assn. v. Ivie* (2011) 193 Cal.App.4th 1110, 1116.) The California Supreme Court in *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 (*Baral*) provides the following summary of the showings and findings required by Code of Civil Procedure section 425.16, subdivision (b):

> At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.

> When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken. Allegations of protected activity supporting the stricken claim are eliminated from the complaint, unless they also support a distinct claim on which the plaintiff has shown a probability of prevailing.

Discussion

Timeliness of the Motion

Plaintiffs contend that the anti-SLAPP motion is untimely and should have been brought in response to the substantially similar First Amended Complaint ("FAC"), which was filed on October 25, 2024. (Opposition at p. 5:11-19.)

An anti-SLAPP "may be filed within 60 days after service of the complaint, or in the court's discretion, at any later time upon terms it deems proper." (Code Civ. Proc., § 425.16, subd. (f).) "'An amended complaint reopens the time to file an anti-SLAPP motion without court permission only if the amended complaint pleads new causes of action that could not have been the target of a prior anti-SLAPP motion, or adds new allegations that make previously pleaded causes of action subject to an anti-SLAPP motion.'" (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 641 [quoting *Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal.App.5th 1207, 1219].)

Here, Plaintiffs claim that Defendant already waived her anti-SLAPP rights by failing to bring the motion to the FAC, which is effectively identical to the SAC.[1] (See Opposition at pp. 5:14-16; 9:26-28.) This is incorrect. The SAC adds a new cause of action for concealment and alleges new facts in support of the existing claims.

For example, the SAC alleges that Liu solicited business from Plaintiffs by offering to review the lease for the franchise business and advertising her five-year practice with false and misleading information. (SAC, ¶ 17.) The SAC also alleges Liu engaged in harassment, including communicating to third parties such as YJBM's customers, YJBM's landlord, local and state authorities, and regulatory agencies to assert false claims that Plaintiffs breached the Licensing Agreement, maintained unsafe work environments, breached their lease, among others. (*Id.* at ¶¶ 28-29, 72.) Furthermore, the SAC alleges Liu's misconduct with respect to Plaintiffs' settlement terms and communications with Liu's former clients and co-defendants, Hiuwai Yip, Zhe Zhang, JJB Beauty LLC, and JJB Beauty Holdings Corporation.[2] (*Id.* at ¶¶ 39-42.)

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[1] The court GRANTS Plaintiffs' request for judicial notice of only the FAC and SAC as the remaining exhibits are not "necessary, helpful, or relevant" to Plaintiffs' arguments. (See *Aquila, Inc. v. Super. Ct. (City and County of San Francisco)* (2007) 148 Cal.App.4th 556, 569, ["[a]lthough a court may judicially notice a variety of matters… only relevant material may be noticed"])

[2] On June 13, 2025, Plaintiffs dismissed Hiuwai Yip, Zhe Zhang, JJB Beauty LLC, and JJB Beauty Holdings Corporation from this action with prejudice.

Having incorporated the new allegations into each claim, the 60-day clock restarted when Plaintiffs filed the SAC on November 10, 2025. Accordingly, Defendant's motion is timely.

First Step Analysis

For the first step of the anti-SLAPP analysis, Defendant must "identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 (*Bonni*) [citing *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884].) Code of Civil Procedure section 425.16, subdivision (e) sets forth four types of communication or conduct that are considered as protected activity. At issue here are subdivisions (e)(1) and (e)(2), which include any written or oral statement or writing made before, or in connection with an issue under consideration or review by a legislative, executive, or judicial proceeding.

An anti-SLAPP movant must also demonstrate that the claim sought to be stricken arises from the protected activity. (See *Bonni, supra,* 11 Cal.5th at p. 1009.) "A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, 'the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech.' [Citations.]" (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062-1063.)

The first cause of action for intentional misrepresentation, second cause of action for concealment, and fourth cause of action for violation of the CFIL[3] are premised on Defendant's preparation and presentation of the Licensing Agreement that disguised a franchise relationship as a trademark license. (SAC, ¶¶ 49, 60, 79.) Defendant contends that her preparation of the Licensing Agreement is protected activity under *Navellier v. Sletten* (2002) 29 Cal.4th 82, 90 (*Navellier*). There, the Court found the negotiation and execution of a release of claims constituted protected activity as a statement or writing made in connection with an issue under review of a judicial body. (*Ibid.*) Importantly, the parties in *Navellier* executed the release after the plaintiffs had already filed an action in federal court—*i.e.*, after litigation had already taken place. (*Id.* at p. 86.) Here, the Licensing Agreement was not made before a judicial proceeding or in connection with any issue under review by a court. As Plaintiffs argue, Defendant's preparation of the Licensing Agreement is "garden variety" attorney malpractice that is not a constitutional right protected by the anti-SLAPP statute. (See *Kolar v. Donahue, McIntosh & Hammerton* (2006) 145 Cal.App.4th 1532, 1539; *Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670 (*Peregrine*) [holding legal advice letters were not protected activity because they "were not writings made before a judicial proceeding, or in connection with an issue under review by a court."]; see *Moore v. Shaw* (2004) 116 Cal.App.4th 182, 195-196 [finding attorney's drafting of termination agreement not protected activity].) Defendant has not met her initial burden of demonstrating that the first, second, and fourth causes of action arise from protected activity. Given this failure, the court need not consider Plaintiffs' additional arguments (*i.e.*, illegality of

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[3]While the fourth cause of action also references Defendant's litigation activity, it appears in the context of Plaintiffs' theory of damages and does not read as the principal thrust or gravamen of the claim. (SAC, ¶ 87; see *Hylton v. Frank E. Rogozienski, Inc.* (2009) 177 Cal.App.4th 1264, 1272 ["If the core-injury producing conduct upon which the plaintiff's claim is premised does not rest on protected speech or petitioning activity, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute."])

purported protected activity bars application of anti-SLAPP statute and preparing the Licensing Agreement is not a "communicative" act).

The third cause of action for intentional interference with contractual relationship is premised on: (1) Defendant's contact with Plaintiffs' landlord requesting termination of YJBM's lease and imposition of penalties against YJBM; and (2) Defendant's knowingly false complaints to local and state authorities about YJBM's noncompliance with city permitting requirements and unsafe work conditions. (SAC, ¶ 72.) Defendant contends that the communication with the landlord constitutes protected activity as "Counseling others in anticipation of litigation or encouraging others to sue is considered protected litigation activity." (Motion at p. 5: 15-17 [quoting *Pech v. Doniger* (2022) 75 Cal.App.5th at p. 443].) The SAC does not allege that Defendant encouraged the landlord to sue, or that Defendant counseled the landlord in anticipation of litigation. Rather, the SAC alleges that Defendant "requested that the landlord terminate YJBM's lease and impose penalties against the business." (SAC, ¶ 72.) Accordingly, Defendant has not established that the landlord's communications are protected activity. Defendant has, however, demonstrated that her complaints to city officials and Occupational Safety and Health Administration concerning permitting and workplace conditions are protected activity. (See *ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1009 ["communication to an official administrative agency…designed to prompt action by that agency is as much a part of the 'official proceeding' as a communication made after the proceedings had commenced."]; see also *Ludwig v. Superior Court* (1995) 37 Cal.App.4th 8, 19 ["The constitutional right to petition, as we have seen, includes the basic act of filing litigation or otherwise seeking administrative action."]; *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 [same].)

The fifth cause of action for violation of the UCL is premised on Defendant's: (1) drafting of the Licensing Agreement; (2) demand letter to Plaintiffs; (3) filing of the Cross-Complaint for her former clients; and (4) continued participation in this litigation. (SAC, ¶ 92.) As discussed above, Defendant's drafting of the Licensing Agreement cannot be considered as protected activity. (See *Peregrine, supra,* 133 Cal.App.4th at p. 670.) Defendant's remaining actions, however, are largely considered as protected activity. (See *People ex rel. Fire Ins. Exchange v. Anapol* (2012) 211 Cal.App.4th 809, 824-825 ["demand letter has been held to constitute a protected prelitigation statement"]; *Nunez v. Pennisi* (2015) 241 Cal.App.4th 861, 872 [filing of a lawsuit is an aspect of the First Amendment right to petition and thus constitutes protected activity].) That the SAC alleges, "Plaintiffs are aware that Liu and Robbins may attempt to invoke litigation privilege…Nevertheless, the current lawsuit alleges [*sic*] against Liu for her non-litigation actions and liabilities under the CFIL" is of no moment. (Opposition at p. 7:5-12 [quoting SAC, ¶ 48].) The court reviews the entirety of the SAC in assessing the merits of an anti-SLAPP. (*Peregrine, supra,* 133 Cal.App.4th at p. 670 ["In deciding whether the 'arising from' requirement is met, a court considers 'the pleadings [ ] and supporting and opposing affidavits stating the facts upon which the liability or defense is based.'"]) Plaintiffs cannot ignore the allegations of protected activity that clearly underlie their claims.

Given Defendant's failure to demonstrate the initial prong as to the first, second, and fourth causes of action, the court need not address the second prong of the anti-SLAPP analysis and DENIES the special motion to strike as to these claims. (See *Baharian-Mehr v. Smith* (2010) 189 Cal.App.4th 265, 271 ["[I]f the defendant does not demonstrate this initial prong, the court should deny the anti-SLAPP motion and need not address the second step."])

As Defendant has demonstrated that the third and fifth causes of action arise in part from activity protected by statute, the court now examines whether Plaintiffs can demonstrate a probability of prevailing on their claims of intentional interference with contractual relationship and violation of the UCL. (See *Baral, supra,* 1 Cal.5th at p. 396 ["When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage."].)

<u>Second Prong</u>

Upon a finding that the relief sought is based on allegations from activity protected by statute, "the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated." (*Simmons v. Bauer Media Group USA, LLC* (2020) 50 Cal.App.5th 1037, 1043.) In determining whether the plaintiff has established a probability of prevailing on the merits of his or her claims, a court considers not only the substantive merits of those claims, but also all defenses available to them. (See *Traditional Cat Assn., Inc. v. Gilbreath* (2004) 118 Cal.App.4th 392, 398.) Accordingly, the defendant bears the burden of proving any affirmative defenses, while the plaintiff bears the burden of establishing "any asserted defenses are inapplicable as a matter of law or make a prima facie showing of facts that, if accepted would negate such defenses." (See *Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 288.) "A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes the defendant's liability on the claim." (*Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1172.)

Defendant asserts that the litigation privilege is a complete defense to Plaintiffs' claim for relief.

"Civil Code section 47, subdivision (b) defines what is commonly known as the 'litigation privilege.' 'The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.' [Citation.]" (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 912.) "The litigation privilege is not limited to the courtroom, but encompasses actions by administrative bodies and quasi-judicial proceedings. [Citation.] The privilege extends beyond statements made in the proceedings, and includes statements made to initiate action. [Citation.]" (*Wise v. Thrifty Payless, Inc.* (2000) 83 Cal.App.4th 1296, 1303.)

The filing of the Cross-Complaint and subsequent motions are protected under the litigation privilege. (See *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1249 (*Action Apartment*) ["We contemplate no communication that is more clearly protected by the litigation privilege than the filing of a legal action."]; see also *Navellier v. Sletten* (2003) 106 Cal.App.4th 763, 770 ["Pleadings and process in a case are generally viewed as privileged communications."].) The issuance of a demand letter relating to litigation contemplated in good faith and under serious consideration similarly falls under the litigation privilege. (See *Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 682 [citing *Action Apartment, supra,* 41 Cal.4th at p. 1251]; see also *Blanchard v. DIRECTV, Inc.* (2004) 123 Cal.App.4th 903, 920 [finding a defendant's issuance of thousands of demand letters, followed by initiation of many, but not all lawsuits, permits inference of good faith contemplation of litigation].) Here, Defendant issued the "Demand Letter and Litigation Notice" on September 6, 2024, disputing Plaintiffs' claims in the Complaint and threatening legal action in response to Plaintiffs' defamation and breach of the Licensing Agreement. (SAC, Ex. B [Demand Letter].) Defendant also asserted that legal action would be taken for Plaintiffs' purported breach of the Licensing Agreement. (*Ibid*.) Defendant subsequently followed through with the demand letter by filing the Cross-Complaint on October 28, 2024, alleging claims for (1) breach of contract; (2) breach of post-termination obligations; (3) unfair competition; (4) defamation; (5) breach of the implied covenant of good faith and fair dealing; and (6) declaratory and injunctive relief.

In Opposition, Plaintiffs maintain at length that the litigation privilege cannot apply to Defendant's alleged professional malpractice in preparing the Licensing Agreement. (Opposition at pp. 8:14-23, 14:12-15:19, 17:23-18:2.) As discussed above, Defendant's preparation and presentation of the Licensing Agreement is not a protected activity under the anti-SLAPP statute. Plaintiffs do not negate the application of the litigation privilege to any of the protected activities (*i.e.*, issuance of demand letter and filing of Cross-Complaint and subsequent motions). Plaintiffs, therefore, fail to meet their burden on the second prong of the anti-SLAPP statute. (See *Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 852 ["When [a party] fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived."]; see also *Baral, supra,* 1 Cal.5th at p. 392 ["when the defendant seeks to strike particular claims supported by allegations of protected activity that appear alongside other claims within a single cause of action, the motion cannot be defeated by showing a likelihood of success on the claims arising from unprotected activity."])

Given the foregoing, the court GRANTS Defendant's special motion to strike as to the third and fifth causes of action but only to the portions of the claims that concern protected activity to which the litigation privilege applies. Accordingly, the court strikes the following allegations of intentional interference of contractual relations: paragraph 72, lines 4-8, beginning with "She also made knowingly false reports to local and state authorities…" The court also strikes the following allegations of violation of the UCL: paragraph 92, lines 11-16, beginning with "(2) When Plaintiffs raised the issues with validity…"

Attorney's Fees

The "prevailing defendant" on a special motion to strike "shall be entitled" to recover his or her attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c).) "[A]ny SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131; see also *Bernardo v. Planned Parenthood Federation of America* (2004) 115 Cal.App.4th 322, 364 [rejecting due process and equal protection challenges to provision].)

Because Defendant's special motion to strike was granted in part, she is entitled to recover some of the fees and costs associated with bringing the motion. The motion is not accompanied by a declaration stating the fees and costs associated with bringing the motion; Defendant will have to bring a noticed motion for attorneys' fees to recover the mandatory award.

<u>Disposition</u>

Defendant's special motion to strike the first, second, and fourth causes of action is DENIED.

Defendant's special motion to strike is GRANTED as to paragraph 72, lines 4-8 and paragraph 92, lines 11-16.

The Court will prepare the Order.

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Calendar Line 6
Case Name: *Dennis Perry v. City of Morgan Hill, et al.*
Case No.: 25-CV-464704

Factual and Procedural Background

This is an action for alleged discriminatory practices in public accommodations by plaintiff Dennis Perry (self-represented) ("Plaintiff") against defendants City of Morgan Hill ("City"), California Farmers' Markets Association, Mohi Farms, Inc. ("Mohi"), and Downtown Morgan Hill Improvement District (collectively, "Defendants").

On February 6, 2026, Plaintiff filed the operative second amended complaint ("SAC") against Defendants alleging causes of action for: (1) Violation of the California Unruh Civil Rights Act; (2) Violation of California Government Code section 11135; (3) Violation of the Disabled Persons Act; and (4) Negligence.

On April 6, 2026, defendant Mohi filed the motion presently before the court, a demurrer to the first, third, and fourth causes of action in the SAC on the grounds of failure to state a valid claim and uncertainty. (Code Civ. Proc., § 430.10, subds. (e), (f).) Plaintiff filed written opposition. Mohi filed reply papers.

Self-Represented Litigants

Self-represented litigants "are held to the same standards as attorneys." (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 ["self-represented litigants are generally entitled to no special treatment"].) "[M]ere self-representation is not a ground for exceptionally lenient treatment." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, "exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (*Id.* at p. 985.)

Failure to State a Cause of Action

" 'The absence of any allegation essential to a cause of action renders it vulnerable to a general demurrer. A ruling on a general demurrer is thus a method of deciding the merits of the cause of action on assumed facts without a trial.' [Citation.] 'Conversely, a general demurrer will be overruled if the complaint contains allegations of every fact essential to the statement of a cause of action, regardless of mistaken theory or imperfections of form that make it subject to special demurrer.' [Citation.]" (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 291-292 (*Morris*).)

"A complaint, with certain exceptions, need only contain a 'statement of the facts constituting the cause of action, in ordinary and concise language' [citation] and will be upheld ' "so long as [it] gives notice of the issues sufficient to enable preparation of a defense."
' [Citation.] '[T]o withstand a demurrer, a complaint must allege ultimate facts, not

evidentiary facts or conclusions of law.' [Citation.]" (*Morris, supra,* 78 Cal.App.5th at p. 292.)

First Cause of Action: Violation of the California Unruh Civil Rights Act (Civ. Code, §§ 51-52)

"To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff's protected status." (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 922.)

"Unless an Unruh Civil Rights Act claim is based on an ADA violation, the act requires a claimant to prove ' "intentional discrimination." ' [Citation.] A claimant may not 'rel[y] on the effects of facially neutral policy on a particular group … to infer solely from such effects a discriminatory intent.' [Citations.] Thus, absent an ADA violation, the Unruh Civil Rights Act requires allegations supporting ' "willful, affirmative misconduct" ' [citation] with the specific intent 'to accomplish discrimination on the basis of [a protected trait].' [Citation.]" (*Martinez v. Cot'n Wash, Inc.* (2022) 81 Cal.App.5th 1026, 1036.)

Here, as the demurrer points out, the SAC does not allege any ADA violations. Absent an ADA violation, defendant Mohi contends Plaintiff does not allege facts of intentional discrimination to support the Unruh Civil Rights Act. This contention however is unavailing as Plaintiff alleges Mohi and other defendants intentionally blocked handicapped parking spaces at their events, permitting non-disabled vendors and charging them to use the handicapped parking to make a profit. (SAC at ¶ 2; see also ¶¶ 21, 27.) Such allegations are incorporated into the first cause of action. (Id. at ¶ 29.) Plaintiff further alleges that Mohi and other defendants denied his privilege to use the handicapped space because of his disability. (Id. at ¶ 32.) These allegations are sufficient to state a cause of action under the Unruh Civil Rights Act and overcome a pleading challenge on demurrer.

Defendant Mohi also asserts that the City owned the streets and parking lots and thus Mohi had no authority to designate or modify parking spaces. But, this assertion goes beyond the scope of an Unruh Civil Rights Act claim which requires only a business establishment to intentionally discriminate or deny full and equal treatment to Plaintiff based on his protected status. The moving papers concede that Mohi is a business establishment and, for reasons explained above, Plaintiff alleges facts to support the remaining elements of an Unruh Civil Rights Act cause of action.

Therefore, the demurrer to the first cause of action on the ground that it fails to state a valid claim is OVERRULED.

Third Cause of Action: Violation of the Disabled Persons Act (Civ. Code, §§ 54-54.3)

Whereas the Unruh Civil Rights Act bars discrimination against several classes of individuals, the Disabled Persons Act ("DPA") more narrowly protects those who suffer from disabilities. (*Turner v. Association of America Medical Colleges* (2008) 167 Cal.App.4th 1401, 1411 (*Turner*).)

"Under the DPA, 'Individuals with disabilities or medical conditions have the same right as the general public to the full and free use of the streets, highways, sidewalks, walkways, public buildings, medical facilities, including hospitals, clinics, and physicians' offices, public facilities, and other public places.' [Citation.]" (*Turner, supra,* 167 Cal.App.4th at p. 1411.)

"The DPA is 'intended to secure to disabled persons the "same right as the general public to the full and free use" of facilities open to the public.' [Citation.] Its focus is upon *physical* access to public places, though the statute may also be construed as requiring equal physical access to a nontangible location such as an Internet site. [Citations.] Although the DPA now protects persons with mental disabilities, the published cases have involved challenges of physically disabled individuals denied access to some public site or service due to their disability. [Citations.]" (*Turner, supra,* 167 Cal.App.4th at p. 1412; see *Hankins v. El Torito Restaurants, Inc.* (1998) 63 Cal.App.4th 510, 515 [patron on crutches denied permission to use the only bathroom on first floor, which was reserved for employees]; see also *Donald v. Sacramento Valley Bank* (1989) 209 Cal.App.3d 1183, 1186-1187 [quadriplegic could not access bank's automatic teller machine from wheelchair due to the steps in front of it].)

Defendant Mohi argues the third cause of action fails because: (1) Plaintiff does not allege facts showing Mohi owned or controlled the parking facilities, or had the authority to modify or supplement parking arrangements on City-owned property; (2) Mohi events were ticketed and Plaintiff does not allege he attempted to purchase a ticket or gain entry to the event itself; and (3) Plaintiff does not allege he requested a modification form Mohi or that Mohi affirmatively denied such a request.

The court is not persuaded by these arguments. As stated above, the focus of the DPA claim is whether Plaintiff, a disabled person, was denied physical access to places open to the public. The crux of the SAC is that Plaintiff was denied the opportunity to park in handicapped parking by Mohi and other defendants at the Farmers Market, a public place, because of his disability. Stated another way, Plaintiff was denied physical access to the market because Mohi and other defendants intentionally blocked handicapped parking spaces at these public events. Such allegations are sufficient to state a cause of action.

Accordingly, the demurrer to the third cause of action on the ground that it fails to state a valid claim is OVERRULED.

Fourth Cause of Action: Negligence

To state a cause of action for negligence, a plaintiff must plead that (1) the defendant owed a duty of care to the plaintiff, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's injuries. (*Wiener v. Southcoast Childcare Centers, Inc.* (2004) 32 Cal.4th 1138, 1145.)

"The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion." (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.)

"[A] demurrer to a negligence claim will properly lie only where the allegations of the complaint fail to disclose the existence of any legal duty owed by the defendant to the plaintiff." (*Osornio v. Weingarten* (2004) 124 Cal.App.4th 304, 316.)

Here, Plaintiff fails to allege sufficient facts establishing a legal duty to support negligence. Plaintiff alleges a duty exists in part based on the first and third causes of action. (SAC at ¶ 41.) But, duty is not an element of those causes of actions and there is no legal authority cited suggesting that such claims may support a duty for negligence. Beyond that, the SAC is devoid of facts showing a duty of care to support negligence. (See *Annocki v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 37 ["Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm."].) Nor does Plaintiff allege facts supporting the elements of breach of duty and causation and thus the demurrer is sustainable on this ground.

Consequently, the demurrer to fourth cause of action is SUSTAINED WITH 15 DAYS LEAVE TO AMEND for failure to state a valid claim. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [if the plaintiff has not had an opportunity to amend the pleading in response to a motion challenging the sufficiency of the allegations, leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment].)

<u>Uncertainty</u>

" ' "[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is incomprehensible that a defendant cannot reasonably respond." ' [Citations.] ' "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." ' [Citations.]" (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.)

"[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant Mohi contends the SAC is uncertain as Plaintiff fails to specify: (1) which defendant controlled the parking facilities; (2) which defendant made decisions about vendor placement; (3) which defendant had authority to provide accessible accommodations; and (4) which defendant bears responsibility for the specific barriers alleged at the Mohi events. But, Mohi can clarify the specifics requested here by utilizing instruments of civil discovery. (See *Davies v. Super. Ct.* (1984) 36 Cal.3d 291, 299 [purpose of civil discovery is to take game element out of trial preparation and assist parties in obtaining facts and evidence necessary for expeditious resolution of their dispute].) Moreover, Mohi's arguments on general demurrer suggest that it has fair notice of the claims brought in this action.

Therefore, the demurrer to the SAC on the ground of uncertainty is OVERRULED.

Disposition

The demurrer to the first and third causes of action on the ground that they fail to state a valid claim is OVERRULED.

The demurrer to the fourth cause of action is SUSTAINED WITH 15 DAYS LEAVE TO AMEND for failure to state a valid claim.

The demurrer to the SAC on the ground of uncertainty is OVERRULED.

The court will prepare the Order.

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Calendar Line 8

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Calendar line 9
25CV470062
Meral Shirazipour v Volkswagen Group of America, inc.

MOTION TO COMPEL

This action arises under the Song-Beverly Consumer Warranty Act. Plaintiff seeks discovery concerning not only Plaintiff's subject vehicle, but also documents relating to similar vehicles, defects, customer complaints, technical investigations, and Defendant's knowledge of the alleged defect condition. Defendant objects specifically to request for production Number 30 and 31 that the requests are overbroad.

Under the California Civil Discovery Act, discovery is permitted regarding any matter that is relevant to the subject matter involved in the action or reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) In Song-Beverly matters, discovery concerning substantially similar vehicles or defects may be relevant, particularly where plaintiff alleges willful failure to comply with warranty obligations and seeks civil penalties. Discovery relating to manufacturer knowledge, recurring defect conditions, technical service information, repurchase practices, and similar consumer complaints may bear on notice, willfulness, and the reasonableness of repair efforts.

However, discovery must remain proportional and reasonably tailored. The Court agrees with Defendant that Plaintiff is not entitled to unlimited discovery concerning all vehicles, all defects, or all complaints without limitation. Requests untethered to the alleged defect or lacking reasonable temporal or technical limitation are overbroad.

Accordingly, the motion is GRANTED to the extent the requests seek documents concerning:
(1) the same make, model, and generation/platform as Plaintiff's vehicle;
(2) vehicles equipped with the same relevant component or system allegedly at issue;
(3) substantially similar defect symptoms or repair conditions;
(4) technical service bulletins, engineering investigations, recalls, warranty analyses, or repurchase data relating to the alleged defect condition; and
(5) consumer complaints concerning substantially similar issues.

Unless otherwise agreed by the parties, the scope shall be limited to a reasonable time period of five years surrounding the manufacture date of Plaintiff's 2019 Volkswagen Golf vehicle.

The motion is DENIED to the extent the requests seek:
(1) information regarding unrelated vehicle lines or unrelated defects;
(2) unlimited nationwide discovery without limitation as to defect or component;
(3) documents lacking reasonable nexus to the alleged defect condition; or
(4) materials protected by attorney-client privilege or attorney work product doctrine.

Defendant shall serve further verified responses consistent with this ruling and produce responsive nonprivileged documents within 20 days. Any withheld documents shall be identified in a privilege log.

The Court declines to impose sanctions at this time, finding substantial justification existed for portions of Defendant's objections given the breadth of the requests.

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